

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

NIELSEN & BAINBRIDGE, LLC, *Complainant*

v.

OCEAN NETWORK EXPRESS PTE. LTD., *Respondent*.

DOCKET NO. 25-30

Served: March 27, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER GRANTING ENTRY OF PROTECTIVE ORDER AS MODIFIED

On March 26, 2026, Complainant Nielsen & Bainbridge, LLC (“NBG”) and Respondent Ocean Network Express PTE. Ltd (“ONE”) filed a joint motion for entry of a protective order and attached the proposed protective order (“PPO”). The parties state that a protective order is necessary because the documents and responses to discovery requests that will be produced in this proceeding will include confidential, commercially sensitive information.

The parties have established good cause for entry of a protective order, and the PPO is generally acceptable but is modified as described by this order. Paragraph 4c of the PPO states that confidential material filed with the ALJ or Commission will be filed and labeled in accordance with 46 C.F.R. § 502.5 and paragraphs 23-26 of the Initial Order. PPO at 6. All paragraphs of the Initial Order apply to this PPO, including paragraphs 20 and 21, which discuss agreements between the parties regarding confidentiality versus requirements for obtaining a confidentiality designation when filing such documents for use in the proceeding. Initial Order at 5. Paragraph 21 sets forth the procedure for use of confidential information the proceeding:

Use in the proceeding – If confidential information is filed in a memorandum or as an exhibit to a dispositive motion or as part of briefing on the merits, it must be accompanied by a motion or as part of briefing on the merits, it must be accompanied by a motion justifying confidential treatment. This motion must identify each item for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. 46 C.F.R. § 502.141(j)(1). The burden is on the party seeking to protect the information to show good cause for its protection.

Id. The PPO is modified to be read as including all paragraphs of the Initial Order that discuss the use and filing of confidential material in the proceeding. *Id.* at 5-6, ¶¶ 20-27.

Paragraph 9c of the PPO purports to alter the days within which a response to a motion regarding a confidentiality designation dispute. PPO at 7. The date by which a response to a motion must be received is set in the Commission's rules. 46 C.F.R. §§ 502.70-502.71; Initial Order at 4. A motion made be made to enlarge or reduce the time to file a response to a motion for good cause. 46 C.F.R. § 502.102.

Accordingly, the motion seeking entry of a protective order is **GRANTED**, with the PPO modified as described in this Order.

The parties are urged to review and must comply with the Initial Order and the Commission's rules regarding motions and confidentiality, prior to submitting any documents or information for use in this proceeding.



Linda S. Harris Crovella
Administrative Law Judge